

CHAPTER 21

Road Transport Lighting Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Reflectors to be carried by vehicles at night.
2. Increase in number of rear red lights to be carried by vehicles at night.
3. Rear lights on vehicles with projecting or overhanging loads.
4. Reversing white lights.
5. Multi-purpose lamps.
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7. Short title, citation, construction and extent.

An Act to amend the law in relation to the rear lighting of road vehicles; and for purposes connected therewith.
[14th July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Every vehicle on any road shall during the hours of darkness within the meaning of section one of the Road Transport Lighting Act, 1927 (hereafter in this Act referred to as "the principal Act"), carry attached to the vehicle two unobscured and efficient red reflectors, and it shall be the duty of any person who causes or permits a vehicle to be on any road during those hours to provide the vehicle with reflectors in accordance with the requirements of this subsection and of any regulations made for the purposes thereof under section nine of the principal Act (which confers power to prescribe the conditions with which reflectors must comply and the position and manner in which they are to be attached):

Reflectors
to be carried
by vehicles
at night.

Provided that—

- (a) in the case of a bicycle or tricycle not propelled by mechanical power or of a bicycle propelled by mechanical power and not having a sidecar attached thereto, one reflector only shall be required; and
- (b) in the case of a vehicle drawing one or more other vehicles, reflectors need not be carried by any of them except the rearmost vehicle or a vehicle more than five feet from the vehicle behind it (the distance being measured between the nearest points of the vehicles, disregarding the drawbar and any fitting for its attachment).

(2) Where a vehicle's tail light is so constructed that, when not showing a light, it is an efficient red reflector complying with any regulations made for the purposes of this section under section nine of the principal Act which apply to the vehicle, it shall be treated for the purposes of this section as being such a reflector when it is, as well as when it is not, showing a light.

In this subsection, "tail light" means, in relation to any vehicle, any lamp carried attached to the vehicle for the purpose of showing a red light to the rear in accordance with the principal Act, as amended, or regulations thereunder.

(3) A vehicle shall not be required to exhibit a white surface under subsection (1) of section nineteen of the Road Traffic Act, 1934 (which relates to vehicles exempted by the principal Act from showing a red light to the rear), or under section two of the Road Transport Lighting (Cycles) Act, 1945 (which relates to bicycles and tricycles not propelled by mechanical power).

(4) Regulations under section nine of the principal Act may make different provision in respect of vehicles of different classes or descriptions, or in respect of vehicles of the same class or description in different circumstances; and in subsection (2) of section nineteen of the Road Traffic Act, 1934 (which penalises the sale of appliances adapted for use as reflectors in accordance with the principal Act, if they do not comply with the conditions prescribed under the said section nine), for the words "the Road Transport Lighting Act, 1927," there shall be substituted the words "the Road Transport Lighting Acts, 1927 to 1953," and for the words "the conditions prescribed under section nine of that Act" there shall be substituted the words "conditions prescribed under those Acts for a class or description of vehicles for which the appliance is adapted".

(5) Without prejudice to the power to exempt from, or to add to or vary, the requirements of this section in the cases provided for by subsections (2) and (3) of section one of the principal Act, the Minister shall have power by regulation to exempt either wholly or partly, and subject to such conditions as may be specified in the regulation, from the requirements of this section, or any of them, vehicles of any particular class or description either generally or in any particular circumstances.

(6) The proviso to section ten of the principal Act shall be amended by the substitution for the words "a lamp or lamps" of the words "any lamp or reflector".

(7) In sub-paragraph (b) of paragraph (iii) of section six of the principal Act, the words from the first "if" onwards, subsection (1) of section nineteen of the Road Traffic Act, 1934, and section two of the Road Transport Lighting (Cycles) Act, 1945, are hereby repealed.

(8) This section shall come into operation on the first day of October, nineteen hundred and fifty-four.

2.—(1) The said section one of the principal Act shall be amended by the substitution for the words “one lamp” in paragraph (b) of subsection (1) of that section of the words “two lamps, each”, and by the substitution for the words “in efficient condition” of the words “in a clean and efficient condition”.

Increase in number of rear red lights to be carried by vehicles at night.

(2) The Minister may by regulations prescribe the conditions to be complied with by lamps carried on vehicles in accordance with the provisions of the principal Act or of any regulations made thereunder and showing a red light to the rear, and regulations under this subsection may make different provision in respect of vehicles of different classes or descriptions or in respect of vehicles of the same class or description in different circumstances.

(3) This section shall come into operation on such day as the Minister may by order made by statutory instrument prescribe and the Minister may, if he thinks fit, prescribe different days for the coming into operation of this section in respect of different classes or descriptions of vehicle or postpone or defer the coming into operation thereof in respect of any particular class or description of vehicle.

(4) On the coming into operation of subsection (1) of this section in relation to any particular class or description of vehicle, the following amendments of the principal Act shall have effect in relation to that class or description of vehicle—

(a) section five of the principal Act (which modifies the provisions of that Act in its application to bicycles, tricycles and invalid carriages) shall be amended by the addition at the end of paragraph (a) of the words “and in the case of a bicycle or tricycle not propelled by mechanical power, or of a bicycle propelled by mechanical power and not having a sidecar attached thereto, only a single lamp showing a red light to the rear instead of two such lamps need be carried”;

(b) section eight of the principal Act (which modifies the provisions of that Act in its application to vehicles towing or being towed) shall be amended by the substitution for the words “a lamp” in paragraphs (a) and (c) of subsection (1) thereof of the word “lamps”.

3.—(1) Where a vehicle on a road during the hours of darkness carries a load projecting to the rear more than three and a half feet behind its tail light, it shall carry a rear lamp in such a position that no part of the load projects to the rear more than three and a half feet behind that rear lamp:

Rear lights on vehicles with projecting or overhanging loads.

Provided that the Minister may by regulations direct that in relation to vehicles of any prescribed class or description this subsection shall have effect with the substitution for references to three and a half feet of references to such longer distance, not being more than six feet, as may be prescribed in relation to vehicles of that class or description.

(2) The Minister may by regulations provide that, subject to any prescribed exceptions, where a vehicle on a road during the hours of darkness carries a load overhanging laterally by more than the prescribed distance (measured from such point as may be specified in the regulations), the vehicle shall carry a rear lamp in the prescribed position to indicate the overhang; and any such regulations may apply to a vehicle otherwise exempted from carrying a rear lamp by section eight of the principal Act (which relates to vehicles towing and being towed).

(3) Every rear lamp carried in accordance with this section or regulations made under it shall comply with the prescribed conditions, and shall be carried in addition to the tail light:

Provided that the Minister may by regulations exempt, in any prescribed circumstances, a vehicle carrying such a rear lamp from carrying a tail light or from carrying two tail lights.

(4) Nothing in paragraph (iii) of section six of the principal Act (which exempts horse drawn agricultural vehicles from carrying rear lamps) shall exempt any implement or vehicle to which that paragraph applies from complying with this section or any regulations made under it, but in relation to any such implement or vehicle a reference to the red reflectors required by section one of this Act shall be substituted for the reference in subsection (1) of this section to the tail light.

(5) In this section—

- (a) "hours of darkness" has the same meaning as in section one of the principal Act;
- (b) "rear lamp" means a lamp showing to the rear a red light visible from a reasonable distance;
- (c) "tail light" means any rear lamp carried attached to the vehicle in accordance with the principal Act, as amended, or regulations thereunder.

(6) Paragraph (2) of section seven of the principal Act is hereby repealed.

(7) This section shall come into operation on such date, not earlier than the first day of October, nineteen hundred and fifty-four, as the Minister may by order made by statutory instrument prescribe.

Reversing
white lights.

4.—(1) Subsection (2) of section two of the principal Act (which prohibits the showing of a light, other than a red light, to the rear) shall not apply to lamps which are carried by vehicles and show a white light to the rear for the purpose of reversing.

(2) Section three of the principal Act (which empowers the Minister by regulation to prescribe conditions applicable to lamps showing a light to the front) shall be extended so as to enable the Minister by regulation to prescribe the conditions subject to which such lamps as are referred to in this section may be used, including conditions as to such matters as are specifically referred to in the said section three or any of them.

5.—(1) Nothing in the principal Act or this Act shall require a vehicle to carry separate lamps for different purposes, if it carries a lamp satisfying all the requirements which would be applicable to separate lamps carried by it for those purposes. Multi-purpose lamps.

(2) The Minister's power to make regulations as to the position in which lamps carried for the purpose of subsection (1) of section one of the principal Act are to be attached to the vehicle shall include power to make special provision, as respects any class or description of vehicle, as to the position in which a lamp carried for the purposes both of paragraph (a) and of paragraph (b) of that subsection is to be attached; and in a case for which special provision is so made the reference in the foregoing subsection to the requirements which would be applicable to separate lamps shall not include the requirements of any regulations as to the position of a separate lamp carried for the purposes of the said paragraph (a) or (b).

(3) Paragraph (i) of section six of the principal Act is hereby repealed.

(4) This section shall come into operation on the first day of October, nineteen hundred and fifty-four.

6.—(1) Any power to make regulations conferred by this Act shall be exercisable by statutory instrument and any such instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament. Supplementary provisions about regulations.

(2) Without prejudice to section thirty-seven of the Interpretation Act, 1889, any power to make regulations conferred by any section of this Act may be exercised at any time after the passing of this Act, but so that the regulations shall not come into force with respect to vehicles of any class or description before the section comes into force with respect to vehicles of that class or description.

7.—(1) This Act may be cited as the Road Transport Lighting Act, 1953. Short title, citation, construction and extent.

(2) This Act shall be construed as one with the principal Act, and this Act and the Road Transport Lighting Acts, 1927 and 1945, may be cited together as the Road Transport Lighting Acts, 1927 to 1953.

(3) This Act shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Road Transport Lighting Act, 1927	17 & 18 Geo. 5. c. 37.
Road Traffic Act, 1934	24 & 25 Geo. 5. c. 50.
Road Transport Lighting (Cycles) Act, 1945 ...	8 & 9 Geo. 6. c. 8.

CHAPTER 22

An Act to amend the Road Transport Lighting Acts,
1927 and 1945; and for purposes incidental thereto.
[14th July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Parked
vehicles.

17 & 18 Geo. 5.
c. 37.

1. Subsection (2) of section one of the Road Transport Lighting Act, 1927, shall have effect as if for paragraph (b) (under which regulations may, subject to any prescribed conditions, authorise vehicles to be parked in special parking places without the lights required by the Act) there were substituted—

“(b) any vehicles or vehicles of any class or description when standing or parked within one hundred yards of a street lamp or on road verges or in places specially set aside for the purpose”.

Application to
trolley vehicles.

2.—(1) Subsection (1) of section fourteen of the said Act and the definition of “public service vehicles” in section fifteen shall have effect as if the words “or trolley vehicles” were omitted.

(2) In relation to trolley vehicles, subsection (2) of section eleven of the said Act (which repeals Acts and other instruments relating to the lighting of vehicles on roads) shall apply to instruments passed or made at any time before the coming into force of this section, other than the Road Transport Lighting Acts, 1927 to 1953, and instruments having effect thereunder.

(3) Any regulations having effect under the Road Transport Lighting Acts, 1927 to 1953, on the day when this section first has effect shall apply to public service vehicles which are trolley vehicles as they apply to other public service vehicles, except in so far as the contrary is provided by any such regulations made after the passing of this Act.